

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

MARIO LORENZO MACHADO, Respondent

Agency Case No. 2-661400748

OAH No. 2025030802

PROPOSED DECISION

Sean Gavin, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter by videoconference from September 23 through 25, 2025, from Sacramento, California.

Phillip L. Arthur, Deputy Attorney General, represented Mary Vixie Sandy, Ed.D., (complainant), Executive Officer of the Commission on Teacher Credentialing (Commission).

Andrea Price, Attorney at Law, represented respondent Mario Lorenzo Machado (respondent), who was present throughout the hearing.

Evidence was received, the record closed, and the parties submitted the matter for decision on September 25, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

RESPONDENT'S CREDENTIALS

1. On April 20, 1998, the Commission issued respondent an Emergency 30-Day Substitute Teaching Permit. That permit expired on May 1, 1999. On May 3, 1999, the Commission issued respondent another Emergency 30-Day Substitute Teaching. That permit expired on June 1, 2000, and has not been renewed.

2. On August 1, 2000, the Commission issued respondent a District Intern Credential. That credential expired on September 1, 2002, and has not been renewed.

3. On August 1, 2002, the Commission issued respondent a Clear Single Subject Teaching Credential. Apart from a brief period between September 1 and 4, 2012, respondent has continually renewed this credential, which is scheduled to expire on October 1, 2027, unless renewed.

4. On August 1, 2005, the Commission issued respondent an Emergency Crosscultural, Language, and Academic Development Certificate. That credential expired on September 1, 2006, and has not been renewed.

5. On March 1, 2008, the Commission issued respondent a Clear Crosscultural, Language, and Academic Certificate. That certificate does not expire.

RESPONDENT'S EMPLOYMENT, STUDENT COMPLAINT, AND TITLE IX INVESTIGATION

6. Between 2003 and mid-2021, respondent worked as an eighth-grade teacher at Oakdale Elementary School (Oakdale) in what is now known as the Twin Rivers School District (District). Starting in mid-2021, respondent worked as an English Language Arts (ELA) teacher and wrestling coach at Foothill High School (Foothill), also in the District. He worked at Foothill until June 30, 2024, when he resigned.

7. On May 27, 2022, HT, a student in respondent's ELA class, filed a sexual harassment complaint against respondent with the District under a federal law known as Title IX of the Education Amendments of 1972 (Title IX). Title IX generally prohibits educational entities that receive federal funds, including the District, from discriminating based on sex. The District hired a third-party investigator to investigate HT's complaint.

8. The investigator interviewed HT and several other students and prepared notes of their statements. Complainant did not introduce the investigator's notes or findings into evidence at hearing. In August 2023, the District dismissed the Title IX complaint because "the conduct alleged in the Formal Complaint, even if true, would not constitute Title IX Sexual Harassment as defined in the Federal Title IX Regulations."

9. Following the Title IX investigation, the investigator notified Jordan Alvarado, the District's Human Resources Director at the time, that many students, including HT, had raised concerns about respondent's behavior that were outside the scope of the Title IX complaint. As a result, on October 31, 2023, Ms. Alvarado

interviewed respondent. She read the students' allegations to respondent and then handwrote his responses.

10. Thereafter, Ms. Alvarado prepared an undated Investigation Report. The report consisted of Ms. Alvarado's findings and her notes from respondent's interview. Ms. Alvarado did not interview any of the students. Instead, she based her findings on her review of notes from the students' interviews during the Title IX investigation. She does not know who interviewed the students or who prepared the notes.

ACCUSATION AND NOTICE OF DEFENSE

11. On March 4, 2025, complainant, acting solely in her official capacity, signed and thereafter filed an Accusation seeking to discipline respondent's credentials, certificates, and authorizations (collectively, respondent's Credentials). The Accusation incorporates many of the allegations included in Ms. Alvarado's investigation report. Generally, complainant alleged that during the 2021-2022 school year, while working as an ELA teacher and wrestling coach at Foothill, respondent engaged in inappropriate conduct toward several students. Complainant further alleged that on one occasion prior to the 2021-2022 school, while working as an eighth-grade teacher at Oakdale, respondent hit a student in the testicles with the back of his hand, an action referred to as "sack tapping." Based on those allegations, complainant seeks to discipline respondent's Credentials for unprofessional conduct, evident unfitness for service, immoral conduct, and acts involving moral turpitude.

12. Respondent timely filed a Notice of Defense in which he requested a hearing and raised three affirmative defenses. First, respondent objected to the form of the Accusation as indefinite and uncertain. Second, respondent objected that the Accusation alleged acts older than four years, in violation of Education Code section

44242.7. Finally, respondent objected that the Accusation does not state acts upon which the Commission can proceed.

Format of the Accusation and Decision

13. Complainant formatted the Accusation based on allegations made by several students, each of whom is identified by their initials to preserve their anonymity. In support of those allegations, many of those students testified at hearing. Additionally, complainant submitted into evidence Ms. Alvarado's investigation report.

14. Through his testimony at hearing and in his written submissions to the District, respondent admitted some allegations but denied others. For the allegations that he admitted, respondent testified or wrote about the circumstances underlying the events and his actions.

15. This Decision will follow the same format as the Accusation. For each of the students' allegations, the Decision will identify the supporting evidence, if any, followed by respondent's admission, denial, or explanation. To the extent the allegations require credibility determinations, those findings will follow. Finally, the significance of respondent's proven conduct will be discussed in the section titled "Summary of Respondent's Conduct and Analysis of *Morrison* Factors" below.

Allegations, Evidence at Hearing, and Credibility Findings

STUDENT HT

GoGuardian Text Messages

16. Complainant alleged:

On or about December 17, 2021, while HT was working in a Google document during her chemistry class, she noticed Respondent monitoring her computer through the District's GoGuardian Teacher Chat application. Respondent engaged in an inappropriate text message exchange with HT and made disparaging and demeaning comments about HT's arms and head.

17. GoGuardian is a computer application educators can use to monitor and communicate with students. Respondent submitted into evidence screenshots of the GoGuardian correspondence in question. HT posted the screenshots to her Instagram account with her own captions. The screenshots appear to capture the conversation at some point after it began. It is unclear if the conversation continued after the final screenshotted message.

18. The first message visible in the screenshots is from respondent to HT: "you've got raptor arms. you can only throw hands if I'm 8 inches away." HT took a screenshot of that message and posted it on her Instagram account with the caption, "Mr. Machado thought he was being hella funny today."

19. HT then replied to respondent, in three separate messages: "bet," "Come on," and "at 5 in the alley behind carl's juinor [*sic*]." Respondent wrote back, "Here's your baby pictures" with a link to a webpage showing the hands of two children with symbrachydactyly, a congenital deformity characterized by underdeveloped or missing fingers, sometimes referred to as "nubbins." HT posted a screenshot of the webpage on her Instagram account with the caption, "this was the link that he sent me...."

20. A few minutes later, respondent wrote to HT again, saying, "You want me to shine up your forehead? Or is it a fivehead?" HT replied, "it's a seven head." Respondent wrote, "Sounds about right," to which HT responded, "if your gonna insult me do it right," followed by the correction, "you're." Respondent wrote back, "True, you do have a ginormous head but I didn't want to squash your self-esteem." HT posted a screenshot of this exchange to Instagram with the caption, "... :/" near the bottom.

21. HT then wrote back to respondent, "get back to wok," followed by the correction, "work." Respondent replied, "wok/ was that an asian racial slur?" HT responded, "nooooooooooooo." She then wrote, "your [*sic*] like if danny davito had an evil thug twin." The screenshots end there. In total, the screenshots cover eight minutes of messages.

22. At hearing, HT acknowledged that she and respondent "teased" each other back and forth during the GoGuardian exchange. However, she explained she was uncomfortable. In particular, she found it inappropriate to make fun of disabilities such as symbrachydactyly. She also found respondent's comments to be flirtatious.

23. Respondent testified that he occasionally used GoGuardian to monitor his students while they were in his class and in other classes. GoGuardian allows teachers to view what is on their students' screens at any given time. When a teacher accesses a class roster, it shows all the students in that class and a thumbnail view of their current screens. If he noticed that a student appeared to be watching something unrelated to school, he would remind them to return to doing schoolwork. In January 2023, he wrote a letter responding to the Title IX complaint in which he explained his GoGuardian use. He wrote, in relevant part:

In the [Title IX] allegations, it claims that I went on Go Guardian during sixth period. On occasion, I would use Go Guardian to ensure that students enrolled in my classes were on task. Sadly, on many occasions, students were not and I would prompt them to get back on task; if not the assignment in their current class, then for them to do the work in my class. I never singled out [HT] nor messaged beyond that extent.

24. In May 2023, Ms. Price, on behalf of respondent, submitted a letter to the District as a follow-up to respondent's previous written response to the Title IX complaint. In her letter, Ms. Price noted respondent no longer had access to GoGuardian. However, she further noted that he had since received and reviewed the specific exchange in question and "after reviewing the screenshots, he does now remember these messages. While these messages were not school related, none of the contents were remotely sexual in nature. As Mr. Machado previously stated, he jokes around with his students frequently."

25. At hearing, respondent confirmed that he used GoGuardian to monitor his students, although he typically focused on members of the wrestling team because if their grade point averages were too low, they could not wrestle. He characterized his exchange with HT as a typical example of banter he and his students used. He did not intend to hurt her feelings, nor did he think she intended to hurt his. He valued his relationship with his students and believed being friendly and approachable improved his teaching effectiveness and his students' learning outcomes. In his written response to the Title IX complaint, respondent wrote, in relevant part, "My relationship with [HT]

is the same as my relationship with all other students in my classes. I laugh and joke with all my students.”

26. There is no dispute as to the contents of respondent’s GoGuardian messages with HT. Respondent’s testimony that the exchange was an example of laughing and joking with a student was credible. HT’s Instagram captions were consistent with that characterization.

Hug and Comment About Missing HT

27. Complainant alleged:

On or about January 31, 2022, Respondent initiated and gave HT a full front-facing hug that lasted a few seconds and said to HT, “I missed you so much.” HT found this hug to be “tight” and felt like an embrace. HT perceived the embrace and Respondent’s comment as very personal, which took HT “off guard” and caused HT to feel uncomfortable. This incident caused HT to change how she interacted with Respondent. HT saw Respondent hug another female student, student L, the same way he hugged HT on or about January 31, 2022.

28. HT testified at hearing consistently with the Accusation. She explained she had just returned to school after an extended absence due to COVID-19. In her opinion, respondent seemed “overjoyed with emotion” to see her. She acknowledged she hugged respondent back but noted she felt uncomfortable because the hug was from the front, whereas their previous hugs were from the side and briefer. She observed respondent hug many other students on multiple occasions. She does not

think it is appropriate in general for teachers to hug students, and she believed the hug violated her personal space.

29. In his written response to the Title IX complaint, respondent wrote, in relevant part:

As for being "noticeably happy" when [HT] came to class and allegedly giving her a "tight hug", this is also factually inaccurate. I don't know what "noticeably happy" means in this context. I greet all my students cheerfully. I was told when I first got into teaching that my greeting may be the only positive words some of these kids receive, so I greet ALL OF THEM positively and cheerfully, reminding them that I was glad that they were there.

30. Respondent further explained in his written response:

In addition, as I have to hold the door to my classroom open (there is no door stop), my back would have been to the door and the only way to hug a student would be if they approached me. I know I would never hug a student other than from the side, so if [HT] claims that this occurred, based upon the circumstances, she would have had to initiate any hug as my back was against the door.

31. At hearing, respondent explained he does not specifically recall hugging HT on the day in question. However, he confirmed that he occasionally hugged students. He also acknowledged that he habitually said to students who returned from an absence, "we missed you so much. Class isn't the same without you." He learned

that phrase while training to be a teacher and believes it conveys to students that their presence is important and valued.

32. HT's testimony that respondent hugged her and expressed missing her was credible. Respondent did not deny the conduct and acknowledged hugging students, though he does not recall the specific event. Respondent credibly explained that he routinely told students "we missed you so much. Class isn't the same without you."

"Do I Need to Beat Someone's Ass?" Comment

33. Complainant alleged:

On or about April 1, 2022, HT entered Respondent's class tardy and upset. HT informed Respondent she was upset over an interaction with a substitute teacher in the previous period. In response, Respondent stated, "Do I need to beat someone's ass?" HT perceived Respondent's comment as flirtatious.

34. HT testified at hearing consistently with the Accusation. She believes the comment indicated respondent was physically attracted to her.

35. In his written response to the Title IX complaint, respondent explained HT arrived to class late and appeared upset. He asked to talk to her at his desk to give her privacy. He wrote, in relevant part: "[HT] told me she was upset with the substitute teacher who covered my class (apparently the substitute upset many students), I made the comment 'Whose ass do I need to kick?' in jest to alleviate the stress of that situation. [HT] laughed and class resumed."

36. At hearing, respondent testified consistently with his written statement. He denied making the comment to flirt or express romantic interest.

37. There is no dispute that respondent made the alleged comment to HT. Although HT credibly testified that she perceived the comment to be flirtatious, respondent credibly explained he did not mean the comment that way.

“You Have Three Holes” Comment

38. Complainant alleged:

On or about April 29, 2022, students in Respondent’s class were working on an assignment which involved defining the vocabulary used in a short story. One of the words the class was asked to discuss was “whole.” During HT’s discussion with classmates, she jokingly said “three wholes.”

Respondent interjected himself into the conversation stating to HT, “You have three holes,” in a manner loud enough so that multiple students in the class could hear. HT interpreted Respondent’s comment as using the word “hole” instead of “whole” and perceived the comment as referring to female anatomy and “their three holes.” HT stated the comment felt sexual and flirtatious, and made her feel uncomfortable. Female student AH corroborated HT’s account of the incident and stated that she also had concerns about Respondent acting flirtatious with HT and felt uncomfortable by the comment. Female student YJ indicated that when Respondent made the comment, the

entire class responded, "Ewww." YJ said that HT looked at her "red with embarrassment" and put her head down for the remainder of class.

39. HT testified at hearing consistently with the Accusation. Respondent's comment made her feel "mortified" and she "wanted to disappear."

40. AH did not testify at hearing. YJ testified that respondent seemed to be "more playful" and "target" HT with his remarks more than other students, but she did not testify about this specific allegation.

41. In his written response to the Title IX complaint, respondent explained that he was showing his class how to search for a word with an electronic document. To demonstrate, he used one of the vocabulary words, "whole," which appeared three times in the short story they were studying. He wrote, in relevant part:

As the majority class was trying to master the word search skill, [HT] was laughing with her friends and said "You have three wholes!", loudly enough for the entire class to hear. This garnered laughter from her friends. I repeated what she said "You have three wholes" and adding, "Don't be weird!" Class instruction resumed, as I continued to teach this skill.

42. At hearing, respondent testified consistently with his written statement. He understands in retrospect why HT would be upset, but he did not mean to refer to her anatomy. He made the comment to "shut down that line of conversation."

43. There is no dispute that respondent made the comment as alleged. Although HT credibly testified that she was mortified about the remark, respondent credibly explained he did not mean to embarrass her. Rather, he hoped to end the disruption. He also credibly explained that in hindsight, he can see why HT would be upset, and he regrets handling the situation as he did.

“What is in Your Belly Button?” Comment

44. Complainant alleged:

On or about April 29, 2022, as HT was leaving Respondent’s classroom, Respondent called out loudly to HT, who was wearing a crop top shirt, “What is in your belly button?” referring to HT’s belly button piercing. HT perceived the comment as sexual in nature given that Respondent asked her this question about her exposed stomach area soon after he made the “three holes” comment to her. HT missed approximately two weeks from school following the incident because she was experiencing anxiety.

45. HT testified at hearing consistently with the Accusation. She explained that respondent commented about her appearance daily. In her experience, respondent commented about every student’s appearance unless they made it clear not to do so. At first, HT found respondent’s remarks funny, but over time she grew to find them teasing, bullying, and in disregard of appropriate boundaries.

46. In his written response to the Title IX complaint, respondent denied commenting about HT’s belly piercing. He explained that he saw another student with a similar piercing and cringed because it reminded him of an event years earlier when

he witnessed a soccer player have her belly piercing torn from her body during a game. A different student who saw respondent's reaction asked about it, and respondent explained his previous experience. At hearing, student BT testified that they heard respondent tell student MT to be careful about her belly piercing because he had seen one ripped out once. BT understood the comment to be cautionary.

47. Respondent further wrote that, at the time of that conversation, HT was in the class but not a participant. Additionally, respondent did not know at that time that HT had a belly piercing. Respondent's testimony at hearing was consistent with his Title IX response letter.

48. HT credibly testified that she heard respondent say, "What is in your belly button?" or similar words to that effect. However, she did not explain her basis for believing respondent directed his question to her, apart from respondent's habit of regularly commenting about her appearance. But she also acknowledged that respondent routinely remarked about many students' appearances.

49. Respondent, on the other hand, credibly explained the circumstances under which he discussed a belly piercing. He specifically recalled the event and the details surrounding the conversation. Respondent's explanation of those details was persuasive and consistent with BT's testimony.

"Sweetheart," "Baby Girl," and "Hun" Comments

50. Complainant alleged that during the 2021-2022 school year, respondent referred to multiple female students, including HT and YJ, as "sweetheart," "baby girl," and "hun."

51. HT testified at hearing consistently with the Accusation. She explained respondent called her "sweetheart" nearly every time he saw her. She also observed him use the terms "honey," "sweetheart," and "baby girl" to and about other students and teachers. In her opinion, respondent tried to "sexualize every conversation he would have with a woman."

52. YJ testified that she recalled one time respondent called her "baby girl" and three times he called other students that term. In her opinion, respondent used it as "a term of endearment." She "didn't feel weird about it" personally, but understands why others might.

53. Student ED testified at hearing that she recalled respondent calling girls "sweetheart." She interpreted respondent's remarks to be made "in a fatherly way," not romantically.

54. At hearing, respondent denied using the term "sweetheart," but acknowledged calling students "sweetie," "hun," and "baby girl." He said "sweetie" and "hun" were words he heard regularly as a child growing up in Biloxi, Mississippi. He used the terms to be "like a caring father figure." He found it "hard to view them just as students," and viewed them "more like [his] kids." He said "baby girl" a few times because he heard other students saying it and wanted to connect with them, but it did not feel natural so he stopped. No one ever asked him not to use any of those terms. He would have honored that request if anyone made it.

55. HT, YJ, and ED credibly testified that respondent called them and other students terms like "sweetheart," "honey," and "baby girl." Respondent acknowledged as much and credibly explained he meant those terms in a fatherly way, rather than romantically. That was consistent with how YJ and ED interpreted his intent.

STUDENT YJ

Comments about HT's Clothes and Hair Color

56. Complainant alleged:

During the 2021-2022 school year, female student YJ observed Respondent pick on Student HT's clothes and hair color. According to YJ, Respondent engaged in this behavior with Student HT more than other students and Respondent behaved like an "inappropriate uncle" toward Student HT.

57. YJ testified at hearing consistently with the Accusation. She explained respondent seemed to be "more playful" and "target" HT with his remarks more than other students. She recalled that respondent told HT her shorts were too short. YJ believed the frequency of respondent's remarks about HT's clothing and appearance was inappropriate and made HT feel bad.

58. At hearing, respondent denied commenting about HT's clothing. Although he did not recall any specific incidents, he explained he would have only discussed her clothing to enforce the school's dress code.

59. YJ credibly testified that respondent commented about HT's clothing and appearance. She readily recalled the specific comment about HT's shorts. In conjunction with HT's testimony, respondent's comments to HT on GoGuardian, and respondent's other admitted teasing and joking with students, YJ's testimony on this point was more credible than respondent's.

Questions About YJ's Sexual Assault

60. Complainant alleged:

During the 2021-2022 school year, after Respondent learned that YJ had been sexually assaulted by another student, Respondent repeatedly asked YJ questions about the incident and the male student who assaulted her. Respondent's ongoing questioning humiliated YJ.

61. At hearing, YJ explained the person who assaulted her was a classmate who briefly lived in YJ's family home. After the assault, the other student moved out and stopped attending Foothill. When respondent took attendance and that student was absent, respondent would regularly ask YJ if she knew his whereabouts. This embarrassed YJ.

62. On cross-examination, YJ explained she was upset with respondent because she believed he knew why the other student was no longer in class but continued to ask YJ about him anyway. She believed all teachers were notified, but she did not know any details about the timing or details of the notification. She confirmed that once she talked to respondent and asked him not to mention the other student to her anymore, he immediately stopped.

63. Ms. Alvarado asked about this allegation when she interviewed respondent in October 2023. According to her interview notes, respondent did not recall receiving any email notification about the reason for the other student's absence. He acknowledged that when YJ told him about the incident, he asked "basic details," such as whether the other student was still in the family home with YJ. He also referred YJ to counseling. They did not discuss the matter afterwards.

64. Respondent's statements to Ms. Alvarado were consistent with his testimony at hearing. At hearing, he explained he asked enough questions of YJ to determine whether law enforcement was already involved to know whether he needed to make a mandated report. He also confirmed that he did not know the reason for the other student's absence until YJ told him.

65. YJ and respondent agreed that after YJ told respondent that the other student assaulted her, respondent asked a few questions and then never brought it up again. Under the circumstances, respondent's testimony that he asked enough questions to determine whether he needed to make a mandate report was credible.

Respondent's Attempt to Trip YJ

66. Complainant alleged, "During the 2021-2022 school year, Respondent tried to trip YJ." At hearing, YJ testified that respondent "playfully" stuck his foot out as he held the door open for YJ once or twice. She never believed respondent was "really trying to trip students," but rather was joking about doing it.

67. Respondent testified consistently with YJ at hearing. He confirmed he sometimes put his foot out to block a student's path, but only ever did so in an exaggerated and playful way. He never actually tripped or tried to trip YJ or any other student.

68. Both YJ and respondent credibly testified that respondent never truly tried to trip her. Rather, he joked about doing so.

“Stop Being an Asshole” or “Stop Dicking Around”

Comments

69. Complainant alleged, “During the 2021-2022 school year, YJ heard Respondent tell another student to ‘stop being an asshole’ or ‘stop fucking around.’”

70. YJ testified at hearing consistently with the Accusation. She said the comments were two of respondent’s “many catchphrases” and explained he said them “pretty often,” or about once or twice a day. At first, she found it surprising, but she was not offended by it. In her opinion, respondent never once said something like that in anger. He only ever did so “playfully.”

71. At hearing, respondent denied telling students “stop being an asshole” or “stop fucking around.” However, he acknowledged saying similar things, mostly to members of the wrestling team. Specifically, he confirmed he said, “don’t be an ass,” “stop fucking around,” or “stop jerking around.” He wanted to make sure the wrestlers did not get into trouble and lose their eligibility to stay on the team.

72. YJ credibly testified that respondent said “stop being an asshole” or “stop fucking around” to students. Based on respondent’s other admitted teasing and joking with students and his admission that he said words that were quite similar to those that YJ reported, YJ’s testimony on this point was more credible than respondent’s.

STUDENT CB

73. Complainant alleged “During the 2021-2022 school year, male student CB would joke back and forth with Respondent. During these exchanges, Respondent called CB an ‘Oompa Loompa.’” Complainant further alleged “CB heard Respondent joke with other students, calling students nicknames and ugly.”

74. CB did not testify at hearing. Apart from the terms “sweetheart,” “baby girl,” and “hun,” as discussed above, no other witness confirmed that respondent used nicknames for students. There was no evidence that respondent called any students ugly.

STUDENT MT

Comments About MT’s Body and Clothing

75. Complainant alleged:

During the 2021-2022 school year, female student MT, who was wearing a crop top shirt which exposed her midriff, went to Respondent's desk in front of the class to retrieve a restroom pass. Respondent said to her, “Here you go big belly.” MT gasped and thought to herself at the time, “Why is he looking?” Respondent’s insulting comment, directed at MT regarding her body size in front of the class, caused her to feel uncomfortable and embarrassed.

76. Complainant further alleged: “During the 2021-2022 school year, Respondent commented on MT’s clothing and told her to ‘put a shirt on’ when she was wearing a sports bra and shorts on her way to work out.”

Lifting MT Off the Ground By Her Ankle

77. Complaint also alleged:

During the 2021-2022 school year, female student MT was on the mats in the gym where wrestling practice took place.

While Respondent was talking to MT, MT did a handstand and Respondent picked her up by her right ankle, lifted her completely off the ground, and held her upside down for approximately three seconds. MT was shocked, “freaked out a little bit,” and told Respondent to put her down.

78. Complainant included the two sets of allegations regarding MT under separate headings. As a result, it was not clear from the evidence whether these allegations involved the same student or two students with the same initials. In either case, no student with the initials MT testified at hearing.

79. Ms. Alvarado asked about both allegations when she interviewed respondent in October 2023. According to her interview notes, respondent denied making the comments to MT. He said, “You can’t body shame people like that. Especially females.”

80. Regarding grabbing or lifting MT by her ankle, respondent told Ms. Alvarado he did not do that, and that physically lifting someone by the ankle that way would not be physically possible for him. He recalled one time that a student was doing a flip and almost kicked him. He caught the student’s ankle to protect himself, but he does not know if that was MT. Respondent testified consistently with those statements at hearing.

81. There was no evidence that respondent made comments about MT’s body or clothing as alleged. Respondent’s testimony that he did not lift MT by her ankle was credible.

STUDENT DR

82. Complainant alleged: "During the 2021-2022 school year, Respondent made comments to male students on the wrestling team, including male student DR, that they were 'a little chunky' and 'looking a little chub' in front of other students in class."

83. DR testified at hearing. He explained he confided in respondent about feeling insecure with his weight. He felt comfortable talking to respondent because of his general attitude and because respondent is also "a larger man." Respondent helped reassure DR that he was gaining weight "in the right places" as he developed. Their conversation was private and not in front of other students.

84. DR also testified that he heard respondent refer to other students, mostly those on the wrestling team, as "fatty," "big," or "pig." Respondent called DR "big" one time. DR was not offended and thought it was playful. In DR's opinion, if other students were offended, they needed to "take the joke better."

85. At hearing, respondent denied calling students "fatty," "big," or "pig." He confirmed he told the wrestlers if he thought they were "chunky" or looking "a little chub." He did so to encourage them to take their health seriously and not gain too much weight between wrestling matches. In his opinion, it is unsafe for students to lose weight quickly to qualify for certain competitive brackets, a practice known as "weight cutting." As a result, when he saw wrestlers eating candy or soda, he would ask "where's your water?" or something similar to remind them to maintain a healthy weight the whole season. He never made the comments to shame the students and he does not believe they took the comments that way. He believes it is not only

appropriate but important for a wrestling coach to educate athletes about healthy weight and diet considerations.

86. It is undisputed that respondent told wrestlers they were "a little chunky" or "looking a little chub." Respondent credibly explained his motivations for doing so.

STUDENT ED

87. Complainant alleged: "During the 2021-2022 school year, female student ED overheard Respondent ask another female student, 'Do you get a lot of guys in school?'"

88. ED testified at hearing consistently with the Accusation. She did not recall the student to whom respondent asked the question. Though she was not involved in the conversation, ED was uncomfortable.

89. Respondent denied asking any student whether she got a lot of guys in schools. He was adamant that he "would never say that."

90. ED appeared to genuinely believe that she overheard respondent's comment as alleged. However, given that she was not part of the conversation, did not know other details of the interaction, and did not recall the target of the question, her testimony was not persuasive. On the other hand, respondent credibly denied making such a comment. In light of respondent's demeanor, combined with his ready admission of many other alleged comments, his testimony was credible that he did not make the comment as alleged.

STUDENT BT

Comments About Transgender Identity

91. Complainant alleged:

During the 2021-2022 school year, Respondent made comments to students regarding transgender people that were inappropriate and perceived by students, including transgender student BT, as insensitive. The comments included, "If transgender women can go and play in women's sports, then I can go and wrestle a ten-year old because I identify as being a ten-year-old," and "You can always tell the true gender of people based on the way they act."

92. BT testified at hearing consistently with the Accusation. BT often ate lunch in respondent's classroom because he was BT's "favorite teacher" and BT "felt comfortable expressing [themselves] with him." BT and another student, AC, were eating lunch in respondent's classroom when he made the comments in question. BT was struggling with their gender identity at the time and found the comment about transgender athletes upsetting.

93. At hearing, respondent admitted discussing transgender athletes with CB, a student on the wrestling team, in his classroom during a lunch period. He did not recall whether BT and AC were present, but conceded they could have been. Respondent explained he and CB were discussing Fallon Fox, a mixed martial arts (MMA) athlete who was assigned male at birth but after puberty transitioned to female and competed against cisgender female athletes. Respondent and CB were discussing

the competitive fairness and potential risk to the cisgender athletes. Respondent explained that Fallon Fox likely had more muscle mass and denser bones, both of which could provide an unfair advantage in a combat sport like MMA. In his opinion, those advantages could also pose a threat to the safety of the other competitors. To draw a parallel, he said it would be as unfair and dangerous as if he wrestled a 10-year-old. He testified he was not attempting to belittle transgender individuals or suggest gender identity was a choice. Rather, he was attempting to illustrate his point about competitive fairness and athlete safety.

94. BT further testified that, either at a different point in the conversation or on a different day, BT and AC told respondent they were mad at DR, a student assigned female at birth but identifying as male. Respondent replied, "see, you can always tell someone's true gender by the way they act," or substantially similar words to that effect. Respondent did not clarify what he meant, but BT understood the comment to mean that even though BT did not identify as female and DR identified as male, respondent was implying they were both female because they were arguing about something petty.

95. At hearing, respondent denied making that comment. He had "no clue" what he might have said to give BT the impression that was what he said or meant. He recalled the conversation with BT and AC about DR. He told them, "you're young. Stop making permanent decisions." By that, he meant decisions about whether to keep or end friendships. He did not mean anything about gender identity.

96. BT credibly testified that respondent discussed transgender athletes. Respondent credibly explained the context in which he made those comments and his meaning.

97. As to the comment about knowing someone's true gender by how they act, although BT may have testified truthfully about their memory of respondent's approximate wording, BT speculated about respondent's meaning. Respondent credibly explained he did not say, and does not believe, that one can determine another's "true" gender by how they act.

Respondent's Misgendering of BT and DR

98. Complainant further alleged:

In or about August 2021, BT told Respondent that their preferred pronouns were "they/them." Respondent continued to refer to BT by "her/she." Respondent failed to use transgender student TR's (also known as DR), chosen name and pronouns and Respondent "mis-gendered" TR. This "irked" BT and students would correct Respondent.

99. At hearing, BT testified that they never specifically instructed respondent to use they/them pronouns. Rather, others used those pronouns for BT, and BT therefore believed respondent understood to use them as well. Additionally, BT noticed that respondent continued to use she/her pronouns for student DR even though student DR had requested that respondent use he/him pronouns. As a result, BT believed respondent was unreceptive to using an individual's preferred pronouns.

100. DR testified at hearing that early in the 2021-2022 school year, he went by TR and used feminine pronouns. After announcing he would go by DR and use masculine pronouns, respondent and many other teachers at Foothill continued to misgender him. Respondent told DR he would try to use the correct name and

pronouns, but he sometimes failed to do so. He always apologized when DR corrected him.

101. DR believes respondent was trying and “didn’t really care that much.” Eventually, respondent began to refer to DR by his last name, which was consistent throughout the school year. DR was not offended by this approach. DR disagreed with the characterization that respondent “refused” to call him by his preferred pronouns.

102. In his interview with Ms. Alvarado and at hearing, respondent acknowledged that he sometimes misgendered students BT and DR accidentally. At hearing, he explained he received a roster at the beginning of the year from which he called attendance. The roster had the letter F, for female, next to BT’s and DR’s names. He tried to remember to refer to each student by the appropriate pronouns, but he sometimes forgot, especially when seeing the letter designation on the attendance roster. He always apologized when a student pointed out his error. He does not believe any students believed he misgendered them purposefully.

103. BT and DR credibly testified that respondent referred to them by the wrong pronouns. DR credibly testified that he did not believe respondent ever did so intentionally. BT’s belief that respondent was unreceptive to using the correct pronouns, even if held in good faith, was speculative. Respondent credibly testified that he only ever misgendered students accidentally. He also credible explained that he genuinely apologized whenever a student corrected him.

STUDENT AF

104. Complainant alleged:

During the 2021-2022 school year, female student AF, who had never had Respondent as a teacher and had never interacted with Respondent before, was walking to her next class. Respondent was walking towards AF and as he passed AF from the side, Respondent said "move" and then pushed AF in a forceful manner which caused AF to almost fall into the bushes.

105. AF testified at hearing that respondent said "move" and pushed her during a passing period. She was surprised and found it "weird," given that she had never previously interacted with respondent. However, she knew he was a teacher at the school and therefore took his conduct as "playful." The push did not harm her.

106. At hearing, respondent explained he does not know AF and has no recollection of ever pushing her. He denied intentionally pushing any students. He noted that he was occasionally required to break up student fights and would have to tell other students to "move" as he jostled through a crowd to access the fighters. He suggested he may have made contact with AF under similar circumstances but does not know with any certainty.

107. Although AF appeared to be truthful when she testified that respondent pushed her and said "move" during a passing period, respondent credibly testified he never intentionally pushed any students, but would sometimes have to make room to get to a fight. Under the circumstances, the characterization that respondent "pushed AF in a forceful manner which caused AF to almost fall into the bushes," as alleged in the Accusation, was less credible than respondent's explanation.

STUDENTS EA, DE¹, AND CC – ALLEGATIONS OF “SACK TAPPING”

108. Complainant alleged: “During the 2021-2022 school year, male student EA observed Respondent ‘jokingly sack tap’ (hitting a male individual in their testicles) wrestling students on two occasions.” Complainant further alleged that during the 2021-2022 school year, respondent “sack tapped” male student DE two or three times, and DE observed respondent “sack tap” other male students. Additionally, complainant alleged that CC, a male eighth-grade student of respondent’s at Oakdale, “saw Respondent hit one of CC’s male friends in the testicles with the back of Respondent’s palm on one occasion.” Finally, complainant alleged that during his interview with Ms. Alvarado, respondent admitted to “sack tapping” at Oakdale on one occasion.

109. Students EA, DE, and CC did not testify at hearing. BT testified that respondent sometimes took “playful jabs” at students, usually involving those on the wrestling team. BT was a student assistant for the wrestling team and spent hours interacting with respondent and the wrestlers. In that context, BT saw respondent gesture toward wrestlers as if to sack tap them, but he never made contact.

110. In his interview with Ms. Alvarado and at hearing, respondent denied sack tapping any students at Foothill. He acknowledged to Ms. Alvarado that he did it one time at Oakdale. Specifically, according to Ms. Alvarado’s notes, respondent said “One time the kids drug me into it. I was doing yard duty and one kid did it to me really hard and I did it to him back as a reflex.” Respondent confirmed those

¹ At hearing, complainant moved to amend the Accusation to correct Student DM to Student DE. Respondent did not object, the motion was granted, and the Accusation so amended by interlineation.

statements at hearing. He clarified that he did not intend to hurt the student, but rather reacted on instinct. If faced with that situation again, he would be more careful to control his reaction.

111. When answering Ms. Alvarado's questions, respondent could have easily lied about sack tapping a student at Oakdale. Instead, he admitted doing so and credibly explained the underlying circumstances. Although the situation did not justify respondent's behavior, his candor about the incident at Oakdale enhanced his credibility regarding the balance of the allegations. Given that respondent credibly denied sack tapping students at Foothill and that no students testified otherwise, his statement that he only ever did so once while at Oakdale was credible.

STUDENTS HT, YJ, AND MT – ALLEGATIONS OF PUSHING STUDENTS

112. Complainant alleged:

During the 2021-2022 school year, students HT, YJ, and MT saw Respondent "playfully" push or shove students during class. As students walked into class, Respondent would sometimes "playfully" hit the back of their head with his hand or push them from behind.

113. MT did not testify at hearing. HT and YJ testified consistently with the Accusation. HT said respondent would sometimes wrestle with the wrestling students or grab pressure points on their necks or elbows. He would also sometimes kick behind their knees. YJ said respondent sometimes playfully pushed or bumped into students. She found respondent to be "kind of touchy," but she "never thought much of it."

114. At hearing, respondent admitted he sometimes playfully bumped shoulders with students. He would usually pretend to be hurt even though the contact was light, minimal, and friendly. Additionally, he would sometimes poke students who were not paying attention in class. As he put it, he is a large man who does not move quietly, so if he could get close enough to students to poke their arms, that was proof they were not paying enough attention to his class.

115. HT and YK credibly testified that respondent made physical contact with students on multiple occasions. Respondent credibly testified that such contact was friendly and good-natured.

STUDENTS MT, MM, AH, BT, DN, AND DE – ALLEGATIONS OF FOUL LANGUAGE

116. Complainant alleged, "During the 2021-2022 school year, Students MT, MM, AH, BT, DN, and DE heard Respondent curse in class, at least once a day, saying 'damn,' 'shit,' 'ass,' and 'fuck.'" Complainant further alleged that during his interview with Ms. Alvarado, respondent admitted to saying "damn" in his class.

117. MT, AH, DN, and DE did not testify at hearing. BT testified that respondent said "shit, fuck, damn, and ass" in class. BT also heard respondent say "asshole" in passing, though not in class. BT estimated respondent said one of more of those words "every other class." He never swore at students, but rather used profanity in a "playful" way. For example, he often cursed when something went wrong with a school computer.

118. MM testified that respondent used profanity in class "from time to time." MM specifically recalled respondent saying "damn" in class, though not often. The

profanity did not bother MM, who found it "mild" compared to the language students used throughout the school day.

119. In his interview with Ms. Alvarado, respondent acknowledged saying "damn" in class, usually if he got hurt or frustrated. At hearing, he also admitted saying "damn" in class, usually about technology. He denied saying "shit," but conceded he might have done so quietly and accidentally. He admitted saying "don't be an ass" to members of the wrestling team. He adamantly denied saying "fuck," explaining there was "no way, no how" he would use that word at school.

120. MM was credible in his testimony. BT was credible insofar as they testified that respondent used swear words during class. Respondent was credible and acknowledged using some swear words during class. As to the frequency of respondent's swearing, BT's estimate was inconsistent with MM and respondent's respective estimates. BT estimated respondent swore "every other class." MM disagreed and found it was "not often." Respondent credibly explained he only swore when faced with a frustrating situation, such as technological difficulties. Similarly, BT testified respondent said "fuck," but MM and respondent disagreed.

121. Although all three witnesses were generally credible, where they disagreed about the frequency of respondent's swearing or whether he said "fuck," MM and respondent were more credible than BT. BT appeared to take their testimony less seriously than MM and respondent. At hearing, BT laughed often and used gestures such as shrugging their shoulders to suggest they could not clearly remember at times. In contrast, MM and respondent were straightforward and serious when testifying. As a result, based on their demeanors while testifying and the specificity of their recollections, MM and respondent were more credible than BT as to the frequency of respondent's swearing and the specific words he used.

Respondent's Additional Evidence

122. Since August 2024, respondent has worked at the Sacramento Academic and Vocational Academy (SAVA), a charter school. His students range from 12 years old to 19 years old. He teaches students enrolled in independent study as well as live classes in math and ELA. He also helps students with their questions in any subject.

123. Respondent has been a teacher for 25 years. He was the eighth of nine children raised by a single mother in the South Natomas area of Sacramento. His life was "turned around" by teachers around him. After working in criminal restitution for nine years, during which time he sought to recover compensation for victims of crime, he started to see familiar names in the criminal justice system. He realized he had the chance to give back to his community the way the teachers in his youth had given back to him, so he quit his job and began pursuing his teaching credential.

124. At hearing, respondent explained he has "dialed down" his behavior with students since starting at SAVA. In hindsight, he does not believe any of his conduct at Foothill crossed any lines of professionalism, but he sees now that he skirted those lines too closely. His goal was to build and maintain strong relationships with his students. He used humor as a way of achieving that goal. He believes he mostly succeeded in connecting with his students, and he was shocked and surprised that students did not approach him directly to express any discomfort he caused them. He cited his yearly performance evaluations, which showed he consistently met or exceeded expectations, as proof of his commitment to students and effective teaching style.

125. Now, respondent still attempts to build rapport with his students, but he is more sensitive to their feelings, even if they do not vocalize those feelings. For

example, he explained he would not discuss Fallon Fox or the issue of transgender athletes competing against cisgender opponents today. He reflected that whether conduct is appropriate often depends on both the nature of the conduct and the line of what is considered professional. He acknowledged that he was perhaps too slow in recognizing how the line of professionalism has shifted over the past 25 years. He is deeply invested in his role as a teacher and has changed his approach to ensure his students do not feel mistreated.

CHARACTER EVIDENCE

126. Respondent called nine character witnesses at hearing, eight of whom also wrote letters in support. Six of the witnesses are respondent's former students and three are former coworkers. The students uniformly praised respondent for his deep commitment to his students' success, not only in class but in life. Collectively, they described him with phrases like, "he is a model of professionalism and kindness," "his style of teaching is like no other," "he also was always there when anyone had a problem and just needed someone to talk to," "he takes great pride in helping all students and encourages the excitement to learn," "he was specifically known in the community to be a free tutor and mentor," and "[respondent] went above and beyond the call of duty as a teacher in his early teaching years and continues to do so to this day."

127. In particular, Moises Espejo, a former student, credits respondent's mentorship with his current professional success. Mr. Espejo was in respondent's eighth-grade ELA class in 2009. In his letter, he wrote of his life at the time:

I had 2 sisters die within the last 3 years prior to attending
this school, was living in poverty, and had an abusive

household. I was also morbidly obese during these years. I had no father figure, no guidance, and was on paper a perfect statistic to either end up in the justice system or to fall into a category of underserved individuals. I could have fallen into drugs, alcohol, crime, gangs, or ETC. I did not. My 8th grade year I was placed in [respondent's] English writing and composition class. That is where the start of my mentorship and education from [respondent] began.

128. Mr. Espejo praised respondent not only for helping him earn good grades in all his classes and join the honor roll, but also with providing "guidance on how to be accountable as an individual, solve personal conflicts like a mature adult, and ke[eping] me from being a felon and acting on my emotions." Respondent continued to tutor and mentor Mr. Espejo through high school even though he was no longer Mr. Espejo's teacher. About his time in high school, Mr. Espejo wrote:

My homelife was extremely unstable, my parents were fighting, and my health was atrocious to say the least. I still did not have a father figure. [Respondent] still assisted me in my education when I was struggling in my English and mathematics classes. He tutored me in exchange for signing community service hours for my JROTC [Junior Reserve Officer Training Corps] program in which I became an officer, leader, and battalion medic. I would have never been on the honor roll all 4 years of highschool [*sic*] without [respondent]. I would have not learned from my mistakes as a growing child had it not been for

[respondent]. I would have not been successful without [respondent], undoubtedly.

129. Today, Mr. Espejo is a paramedic. He has been singled out as “the best prehospital report writer” for every employer he has had, and he believes he owes his success to respondent’s mentorship. He noted, “I would not have been as successful in any facet of my career without [respondent].”

130. Respondent’s former coworkers similarly praised his dedication to his students and sense of responsibility for their wellbeing and education. Fred Goodmand and Manny Suvankham both worked with respondent for several years when they were public safety officers at a high school where respondent worked prior to Oakdale. They both observed respondent interact with students. Neither ever saw or heard of respondent behaving disrespectfully or unprofessionally.

131. Anjelica Mendoza was the Vice Principal at Oakdale when respondent worked there. During that time, she “consistently witnessed his unwavering dedication to his students, their parents, and the Oakdale community.” Ms. Mendoza is aware of the Accusation and “can vouch that he never exhibited any such behavior during his time at Oakdale Elementary. On the contrary, he conducted himself professionally and responsibly at all times.”

Summary of Respondent’s Conduct and Analysis of *Morrison* Factors

132. As discussed above, complainant established that respondent engaged in much of the conduct alleged in the Accusation. Specifically, complainant proved, through clear and convincing evidence, that respondent: (1) teased HT about her arms, hands, and forehead using GoGuardian; (2) hugged HT and said, “we missed you so much. Class isn’t the same without you,” when she returned after an absence; (3)

jokingly asked HT, "Do I need to beat someone's ass?" when she was upset with a substitute teacher; (4) said to HT, "you have three holes. Don't be weird," after she stated in class, "I have three holes"; (5) discussed with student witnessing someone's belly button piercing be ripped out; (6) called students "sweetheart" or "sweetie," "baby girl," and "hun"; (7) told HT her shorts were too short and made other playful remarks about her clothing and appearance; (8) asked YJ questions about her assault to determine whether he needed to make a mandated report; (9) joked about tripping YJ; (10) told students on the wrestling team to "stop being an asshole" and "stop dicking around"; (11) told wrestlers they looked "a little chunky" or "a little chub" to motivate them to maintain a healthy weight all season; (12) compared the competitive advantage and risk of injury associated with a transgender woman competing in MMA to his own wrestling of a 10-year-old; (13) mistakenly used the wrong pronouns for BT and DR and used the wrong first name for DR; (14) pushed past AF and told her to "move" one time; (15) sack tapped an eighth-grade student at Oakdale; (16) playfully bumped into students on campus; and (17) occasionally said "damn," "ass," and "shit" in class in front of students.

133. However, proving that respondent engaged in the aforementioned conduct does not end the inquiry. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214 (*Morrison*), the California Supreme Court concluded a teaching credential cannot be disciplined for unprofessional conduct "unless that conduct indicates that the [educator] is unfit to teach." (*Id.* at p. 229.) In other words, "[t]he evidence must not only be sufficient to support a finding that [respondent] engaged in misconduct, but also a finding that his misconduct met the criteria for unfitness for service as articulated in *Morrison*." (*San Diego Unified School Dist. v. Com. on Professional Competence* (2013) 214 Cal.App.4th 1120, 1149.)

134. The *Morrison* Court outlined factors to consider when determining whether an educator's conduct demonstrates unfitness to teach (*Morrison, supra*, 1 Cal.3d at p. 229), and the Commission adopted those factors by enacting California Code of Regulations, title 5, section 80302. Those factors are considered below.

LIKELIHOOD OF ADVERSE EFFECT ON STUDENTS OR FELLOW TEACHERS

135. "A teacher [. . .] in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the children coming under [his] care and protection." (*Bd. of Education v. Swan* (1953), 41 Cal.2d 546, 552, quoting 66 Corpus Juris, p. 55, [overruled on other grounds by *Bekiaris v. Bd. of Education* (1972) 6 Cal.3d 575].) Respondent's conduct had an adverse effect on multiple students, most notably HT. Moreover, respondent's behavior portrayed him and the teaching profession negatively.

PROXIMITY OF REMOTENESS IN TIME

136. Respondent's misconduct mostly occurred in the 2021-2022 school year, which was between approximately 40 and 50 months ago. Although that is not recent, it is not remote in time either. (See, e.g., *Brandt v. Fox* (1979) 90 Cal.App.3d 737, 747, holding that events 53 months earlier were "relatively remote in time.")

TYPE OF CREDENTIALS HELD

137. Respondent's Clear Multiple Subject Teaching Credential authorizes him to teach students of many ages in a variety of contexts. Typically, that credential is used in a middle or high school setting, where students are nearing adulthood and need good examples of how to behave maturely and appropriately. Therefore, it is even more imperative that he exemplifies the type of behavior society wants emulated

by students. Some of respondent's conduct raises concerns over whether he embodied the type of mature behavior an appropriate role model would display.

AGGRAVATING AND MITIGATING FACTORS

138. The Commission's regulations define "aggravating factor" as "an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession." (Cal. Code Regs., tit. 5, § 80300, subd. (b).) The definition includes six examples:

- (1) a prior record of adverse action including the nature and extent of that record;
- (2) that the misconduct evidences multiple acts of wrongdoing or demonstrate a pattern of misconduct;
- (3) that the misconduct was surrounded by or followed by bad faith, dishonesty or other violation of the laws governing educators;
- (4) that the misconduct significantly harmed a child entrusted to the care of a credential holder or applicant, significantly harmed the public or the educational system;
- (5) that the holder or applicant demonstrated indifference toward the consequence of the misconduct, which includes failure to comply with known court orders; or

(6) that the holder or applicant had prior notice, warnings or reprimands for similar conduct from any reliable source.

139. Notably, just one of these aggravating factors is present in this case. Respondent's conduct included multiple acts that demonstrated a pattern. Respondent has taught for approximately 25 years with no prior employer or credential discipline. Respondent's conduct did not involve bad faith or dishonesty. Although many of the students expressed discomfort with respondent's actions, there was no evidence they were significantly harmed. Respondent did not demonstrate indifference to the consequences of his actions, but rather accepted responsibility and credibly explained that he is more vigilant now to maintain appropriate professional boundaries. Finally, respondent had no prior warnings or reprimands.

140. Neither the Education Code nor the regulations adopted by the Commission specify what constitutes "extenuating circumstances." However, the California Code of Regulations defines "mitigating factor" as "an event or circumstance which demonstrates that the public, schoolchildren and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever." (Cal. Code Regs., tit. 5, § 80300, subd. (m).) The definition includes seven examples:

- (1) absence of any prior record of adverse action over many years of educational service, coupled with present misconduct which is not deemed most serious;
- (2) lack of harm to the person who is the object of the misconduct;

(3) emotional or physical difficulties suffered by the holder or applicant which substantially contributed to the misconduct; provided that the difficulties were not the product of illegal conduct by the credential holder or applicant, such as illegal drug or substance abuse; and further provided that the credential holder or applicant has established through clear and convincing evidence that he or she no longer has such difficulties;

(4) a demonstration of good character of the applicant or holder attested to by references from the educational community or the general community from individuals aware of the extent of the applicant's or holder's misconduct;

(5) objective action taken by the applicant or holder, spontaneously demonstrating remorse at the time of the misconduct, and recognition of the wrongdoing which is designed to timely make amends for the consequences of the misconduct;

(6) the proximity or remoteness in time relative to the seriousness of the misconduct; or

(7) the nature and extent of subsequent rehabilitation.

141. Here, the evidence established the presence of multiple mitigating factors. Respondent has no record of prior adverse action, and his present misconduct is not the "most serious" kind of misconduct in which a teacher can engage. None of

the students were significantly harmed. Respondent's former students and colleagues attested to respondent's good character and dedication to his students. Respondent recognized how his behavior can improve and is actively monitoring his current behavior with students to ensure he does not cross professional boundaries again. Since the events in question occurred approximately three to four years ago, respondent has gained new employment at another high school and has not received any other complaints about his behavior.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF THE MOTIVES RESULTING IN THE MISCONDUCT

142. Although respondent bears the sole blame for his conduct, he undertook many of his actions for the commendable purpose of attempting to create and grow lasting and meaningful relationships with his students. Many of his former students confirmed he regularly accomplished that goal.

LIKELIHOOD OF RECURRENCE

143. Given respondent's lack of disciplinary history before or after these events, coupled with his sincere efforts to understand how his actions fell short of the Commission's expectations of its teachers and his attempts to correct his behavior, his misconduct is unlikely to recur. His former students and colleagues supported that conclusion as well.

POSSIBLE CHILLING EFFECT ON CONSTITUTIONAL RIGHTS OF OTHERS

144. Neither party presented evidence about the possibility of a chilling effect on any person's constitutional rights. Given the nature of respondent's conduct, such an effect is unlikely.

PUBLICITY OR NOTORIETY OF MISCONDUCT

145. There was no evidence that respondent's conduct during the 2021-2022 school year was noteworthy or the subject of public interest.

LEGAL CONCLUSIONS

1. Complainant bears the burden of proving the existence of grounds for disciplining respondent's Credentials and must do so by clear and convincing evidence to a reasonable certainty. (*Daniels v. Dept. of Motor Vehicles* (1983) 33 Cal.3d 532, 536 ["When an administrative agency initiates an action to suspend or revoke a license, the burden of proving the facts necessary to support the action rests with the agency making the allegation"]; *Gardener v. Comm'n. on Professional Competence* (1985) 164 Cal.App.3d 1036, 1039-1040 [recognizing that the clear and convincing evidence standard applies to proceedings to discipline a teacher's credential, whereas the lesser preponderance of the evidence standard applies to proceedings to dismiss a teacher from particular employment].) "The courts have defined clear and convincing evidence as evidence which is so clear as to leave no substantial doubt and as sufficiently strong to command the unhesitating assent of every reasonable mind. [Citations.] It has been said that a preponderance calls for probability, while clear and convincing proof demands a high probability [citations]." (*In re Terry D.* (1978) 83 Cal.App.3d 890, 899; italics original.)

2. In a disciplinary action such as this, respondent must prove rehabilitation. (*Whetstone v. Bd. of Dental Exam'rs* (1927) 87 Cal.App. 156, 164; Evid. Code, § 500.) The burden of proof is a preponderance of the evidence (Evid. Code, § 115), which

means "more likely than not." (*Sandoval v. Bank of America* (2002) 94 Cal.App.4th 1378, 1388.)

Causes for Discipline

UNPROFESSIONAL CONDUCT

3. The Commission may discipline a credential based on the holder's unprofessional conduct. (Ed. Code, § 44421.) Conduct is unprofessional if it "violates the rules or ethical code of a profession or [is] such conduct which is unbecoming a member of a profession in good standing." (*Bd. of Education v. Swan, supra*, 41 Cal.2d at p. 553; quoting, 66 Corpus Juris, p. 55.)

4. As discussed above, complainant proved by clear and convincing evidence that respondent: (1) teased HT about her arms, hands, and forehead using GoGuardian; (2) jokingly asked HT, "Do I need to beat someone's ass?" when she was upset with a substitute teacher; (3) told students on the wrestling team to "stop being an asshole" and "stop dicking around"; (4) sack tapped an eighth-grade student at Oakdale; and (5) occasionally said "damn," "ass," and "shit" in class in front of students. Such conduct was unprofessional because it violated the rules or ethical code of the teaching profession and was unbecoming of a teacher in good standing. (*Bd. of Education v. Swan, supra*, 41 Cal.2d at p. 553; quoting, 66 Corpus Juris, p. 55.) Cause therefore exists to discipline respondent's Credentials for unprofessional conduct pursuant to Education Code section 44421.

5. Regarding the balance of the allegations against respondent, complainant either did not prove them by clear and convincing evidence or did not prove that they constituted unprofessional conduct.

EVIDENT UNFITNESS FOR SERVICE

6. The Commission may discipline a credential based on the holder's evident unfitness for service. (Ed. Code, § 44421.) "Evident unfitness for service" means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. (*Woodland Joint Unified School Dist. v. Com on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

7. Complainant did not prove by clear and convincing evidence that respondent is not fit for service as a teacher due to temperamental defects or a fixed character trait. Cause therefore does not exist to discipline his Credentials for evident unfitness for services pursuant to Education Code section 44421.

IMMORAL CONDUCT

8. The Commission may discipline a credential based on the holder's immoral conduct. (Ed. Code, § 44421.) The term "immoral" has been defined generally as "that which is hostile to the welfare of the general public and contrary to good morals. . . . [It] includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Bd. of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

9. Complainant did not prove by clear and convincing evidence that respondent engaged in immoral conduct. Cause therefore does not exist to discipline his Credentials for immoral conduct pursuant to Education Code section 44421.

ACTS INVOLVING MORAL TURPITUDE

10. The Commission may discipline a credential "for any cause that would have warranted the denial of an application for a credential or the renewal thereof." (Ed. Code, § 44421.) An application for a credential may be denied if the applicant "has committed any act involving moral turpitude." (Ed. Code, § 44345, subd. (e).) "Moral turpitude" has been defined as "everything done contrary to justice, honesty, modesty or good morals." (*Rice v. Alcoholic Beverage Appeals Bd.* (1979) 89 Cal.App.3d 30, 36.) An act involves moral turpitude if it involves a serious breach of a duty owed to another or to society. (*In re Stuart K. Lesansky* (2001) 25 Cal.4th 11, 16.)

11. Complainant did not prove by clear and convincing evidence that respondent engaged in acts involving moral turpitude. Cause therefore does not exist to discipline his Credentials for acts involving moral turpitude pursuant to Education Code sections 44421 and 44345, subdivision (e).

Appropriate Discipline Based on *Morrison* Factors

12. Complainant proved there is cause to discipline respondent's Credentials for unprofessional conduct. Such discipline may consist of a private admonition, public reproof, or the suspension or revocation of the Credentials. (Ed. Code, §§ 44000.5; 44421.) When determining what level of discipline to impose, the Commission should consider the aggravating and mitigating factors previously identified. (Cal. Code Regs., tit. 5, § 80300, subds. (b), (m).)

13. As discussed above, many of the mitigating factors—and just one of the aggravating factors—are present. Consequently, suspending or revoking respondent's credentials is unwarranted and would be unduly punitive. The purpose of an administrative disciplinary action is not to punish the licensee for his misconduct, but rather to ensure he does not exercise his license privileges in derogation of the public interest. (*Camacho v. Youde* (1979) 95 Cal. App. 3d 161, 164.)

14. Instead, the appropriate discipline is to publicly reprove respondent. Such public reproof serves the interests of public protection because it will constitute an "adverse action" and thus can be considered as prior discipline in the event respondent engages in future misconduct. Furthermore, a public reproof balances the Commission's interest in regulating its licensees with consideration of the significant mitigating factors present here.

Respondent's Affirmative Defenses

15. Respondent raised three affirmative defenses in his Notice of Defense. He objected to the form of the Accusation as indefinite and uncertain. Similarly, he objected that the Accusation does not state acts upon which the Commission can proceed. Those defenses are rejected. The Accusation clearly identified the alleged misconduct and the legal grounds purportedly justifying discipline against respondent's Credentials.

16. Respondent also objected that the Accusation alleged acts older than four years, in violation of Education Code section 44242.7. Subdivision (a) of that section provides:

Any allegation of an act or omission by the holder of a credential, except for an allegation that involves sexual

misconduct with a minor or recurring conduct resulting in a pattern of misconduct, shall be presented to the Committee of Credentials for initial review within four years from the date of the alleged act or omission, or within one year from the date the act or omission should reasonably have been discovered.

17. "For purposes of Education Code section 44242.7(a), a matter is presented to the Committee when the credential holder or applicant is notified that the matter is set for initial review by the Committee." (Cal. Code Regs., tit. 5, § 80306, subd. (b).) Here, the parties did not submit direct evidence of the date respondent was notified the Committee had set the matter for initial review. However, complainant alleged in the Accusation that the Committee determined probable cause existed for an adverse action against respondent in October 2024. Consequently, even if viewed in the light most favorable to respondent, allegations from October 2020 through October 2024 would be timely included. All but one of the allegations in the Accusation are from the 2021-2022 school year and are therefore validly included. The sole exception is the allegation that respondent "sack tapped" a student while he worked at Oakdale.

18. Respondent worked at Oakdale until mid-2021. Therefore, he worked at Oakdale for several months within the four-year period predating October 2024. Respondent had the burden of proving the facts underlying his affirmative defenses. Respondent did not prove any of the allegations occurred more than four years before September 11, 2024. Therefore, his affirmative defense based on Education Code section 44242.7 is rejected.

ORDER

Respondent Mario Lorenzo Machado's Clear Single Subject Teaching Credential and Clear Crosscultural, Language, and Academic Certificate are PUBLICLY REPROVED for unprofessional conduct, pursuant to Education Code section 44421.

DATE: October 28, 2025

A handwritten signature in black ink, appearing to read "Sean Gavin", followed by a horizontal line and a period.

SEAN GAVIN

Administrative Law Judge

Office of Administrative Hearings